



Questionnaire: Kimberly-Clark - Kenvue

MN-80005

Deadline to respond: 5 August 2026

The Australian Competition and Consumer Commission (**ACCC**) is currently assessing the proposed acquisition by Kimberly-Clark Corporation and its subsidiaries (**Kimberly-Clark**) of sole control of Kenvue Inc. and its subsidiaries (**Kenvue**) (the **Acquisition**).

To pre-emptively address potential competition concerns that may otherwise arise from the Acquisition due to the overlap between the parties in the supply of feminine hygiene products, Kimberly-Clark has offered an undertaking pursuant to section 87B of the *Competition and Consumer Act 2010* (the **Remedy Offer**).

The Remedy Offer is intended to remove the competitive overlap between the parties by providing for the divestiture of Kenvue's entire feminine hygiene business in Australia and New Zealand, consisting of the Stayfree and Carefree brands, together with all accompanying assets, licences, agreements and other tangible and intangible property listed in Schedule 4 of the section 87B undertaking, to the extent required to facilitate the operation of the Divestiture Business in Australia (**Divestiture Business**) to an independent third-party purchaser approved by the ACCC.

For further information about the ACCC's assessment of the Acquisition and the Remedy Offer, including a copy of the draft undertaking, see the ACCC's [Acquisitions Register](#).

The ACCC is assessing the impact of the Acquisition on competition and is seeking your views. The ACCC invites you to provide submissions or information in response to the questions below by **5 August 2026** via email to mergers@acc.gov.au with the title *Submission re: Kimberly-Clark - Kenvue*. The ACCC must complete its assessment within strict statutory timelines which also impacts the time available for consultation.

If you would prefer to speak to a member of the ACCC case team, please email mergers@acc.gov.au and mergersru@acc.gov.au with the title *Request for call re: Kimberly-Clark - Kenvue*. Someone from the case team will contact you to find a suitable time for a call.

Please note that:

- This request is made in accordance with section 51ABZZD(2)(a) and (c) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). This means that while the ACCC may take into account submissions or information received after the due date, it is not required to do so.
- In responding to the questions below or when providing a submission, please highlight and/or mark any confidential information and indicate why the information is confidential (as brief reasons in footnotes in your response or submission, or in a separate document such as the ACCC's

[confidentiality claims template](#)). The standard terms on which the ACCC accepts confidential information are outlined at the end of this document.

Questions

General questions for all respondents about the Acquisition

1. Provide a brief description of your business or organisation, including any commercial relationships with Kimberly-Clark and/or Kenvue and whether your business competes with Kimberly-Clark or Kenvue (and if so, the nature of that competition).

2. Outline any concerns regarding the impact of the Acquisition on competition, including if Kimberly-Clark and Kenvue are close competitors. If so, identify for which product type(s), and the extent to which there are alternatives suppliers available.

3. Do you consider the increased range of brands that would be in Kimberly-Clark's portfolio post-Acquisition would increase its bargaining power with customers? If so, how would this affect competition?

4. Do you consider the Acquisition is likely to lead to an increased ability for Kimberly-Clark to link (e.g. through volume discounts or rebates) the products it supplies to customers? If so, is this likely to make it harder for suppliers of competing products to compete?

5. In particular, do you consider the Acquisition is likely to lead to Kimberly-Clark having an increased ability to link products in the baby care category (or an increased ability to acquire greater shelf space), through the combination of Kimberly-Clark's Huggies nappies and wipes with Kenvue's Aveeno and Johnson's baby toiletries. If so, do you consider this is likely to make it harder for suppliers of competing baby products to compete?

6. Provide any additional information or comments you consider relevant to the ACCC's consideration of the Acquisition.

Questions for all respondents about the proposed divestiture

7. Describe the extent to which Kimberley-Clark's Remedy Offer would address any concerns you have in relation to the Acquisition.

8. Outline any concerns you consider would not be resolved by the divestiture of the Divestiture Business.

9. Provide your view on whether the Divestiture Business that Kimberley-Clark is proposing to divest is likely to attract a suitable purchaser, and the qualities a suitable purchaser would possess.

10. What type of manufacturing arrangements or capabilities do you consider a suitable purchaser of the Divestiture Business would require to be successful?

11. What factors may impact effective implementation of the divestiture proposal e.g., undertaking drafting, and any third party consents (including regulatory) required.

12. What are the key assets, rights and personnel required to ensure a potential purchaser of the Divestiture Business can become a viable, effective, and long-term competitor in the supply of relevant feminine hygiene products in Australia.

13. Provide any additional information or comments you consider relevant to the ACCC's consideration of the Remedy Offer.

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Confidentiality of responses

During the ACCC's assessment of a notified acquisition, the ACCC may receive information that is properly regarded as being confidential, and which is provided to the ACCC in confidence. The ACCC is committed to treating this information responsibly and in accordance with the law. The ACCC understands the importance of confidentiality to parties involved in a notified acquisition, as well as to third parties that provide information to the ACCC.

The standard terms on which the ACCC accepts confidential information are:

- there is no restriction on the internal use, including future use, that the ACCC may make of the confidential information consistent with the ACCC's statutory functions
- confidential information may be disclosed to the ACCC's external advisors and consultants on condition that each such advisor or consultant will be informed of the obligation to treat the information as confidential, and
- the ACCC may disclose the confidential information to other third parties if compelled by law or in accordance with section 155AAA of the Act. This includes disclosures made in the performance of official duties or functions, which include transparency requirements which are part of the merger control regime.

For further information on confidentiality, see the ACCC's [interim merger process guidelines](#).